

defense. (*Affan v. Portofino Cove Homeowners Assn.* (2010) 189 Cal.App.4th 930, 940.) Further, “[i]t does not create a blanket immunity for all the decisions and actions of a homeowners association.” (*Ibid.*)

Defendant has not shown that the business judgment rule would apply to the tort claims here. Nor has Defendant shown that all criteria necessary to apply the business judgment rule are apparent from the complaint.

Defendant’s demurrer to the negligence and premises liability claims is overruled.

The Court takes judicial notice of the CC&Rs as they are a recorded document and Plaintiff has not objected.

12. 9:00 AM CASE NUMBER: C25-03308
CASE NAME: RAMONA FICKES VS. GHC OF WALNUT CREEK, LLC
***HEARING ON MOTION IN RE: CALENDAR PREFERENCE CCP 36(A)**
FILED BY: FICKES, RAMONA MAY
TENTATIVE RULING:

Before the Court is a motion for preference filed by plaintiffs Ramona May Fickes (by and through her successor-in-interest Ronald Laurence), Dolly Ryan (individually), and Ronald Laurence (individually).

We’ve got a 95-year-old with a history of cancer, and defendants are opposing the motion on the ground that she’s too healthy to qualify? Really?

For the reasons set forth below, Plaintiffs’ motion for preference is **granted**.

Background

Ramona May-Fickes entered into the care of Walnut Creek Skilled Nursing and Rehabilitation Center on August 8, 2024. (Complaint, ¶ 22.) Plaintiffs allege that around early October 2024, when outside hospice care ceased, the care for Ramona deteriorated. (Complaint, ¶¶ 23-25.) On November 13, 2024, staff at the skilled nursing center noticed a discoloration on Ramona’s right leg that they referred to as a rash. (*Id.* at ¶ 29.) On November 19, 2024, Ramona’s family withdrew her from the skilled nursing facility and took her to an emergency room, where she was diagnosed with ischemic pain in her right foot and critical limb ischemia of the lower right extremity. (*Id.* at ¶¶ 31-34.) She was admitted to the hospital that same day and on November 27, 2024, the hospital discharged her to her home with hospice care, and she passed away at home on January 24, 2025. (*Id.* at ¶¶ 35-39.)

On November 12, 2025, the operative complaint in this matter was filed. It alleges claims on behalf of Ramona May Fickes, Ronald Laurence (Ramona’s nephew), and Dolly Ryan (Ramona’s sister). Ronald Laurence is pursuing the claims belonging to the decedent, Ramona May Fickes, as her successor-in-interest. The Complaint alleges causes of action for: (1) elder neglect; (2) elder neglect [enhance remedies]; (3) negligence; (4) fraud [constructive]; (5) tort per se [Penal Code § 368]; (6) intentional infliction of emotional distress; (7) violation of the Patient’s Bill of Rights; and (8) wrongful death. Of those claims, the only one being pursued by Ronald Laurence and Dolly Ryan, in their individual capacities, is the wrongful death claim. All other claims are being pursued on Ramona’s behalf by

Ronald Laurence.

Legal Standard

“A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) [t]he party has a substantial interest in the action as a whole[; and] (2) [t]he health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (Code Civ. Proc., § 36(a).)

A motion made under § 36(a) “may be supported by nothing more than an attorney’s declaration ‘based upon information and belief as to the medical diagnosis and prognosis of any party.’ [Citation.]” (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534, citing Code Civ. Proc, § 36.5 “[a]n affidavit in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party”].) The affidavit may also consist entirely of hearsay and conclusions. (*Id.*)

If the court makes the requisite finding of fact on a motion for preference under Code of Civil Procedure § 36(a), it has no discretion to deny the motion due to the use of the word “shall” in the statute. (See *Peters v. Superior Court* (1989) 212 Cal.App.3d 218, 224-25; see also *Rice v. Superior Court* (1982) 136 Cal.App.3d 81, 89-94.) “Failure to complete discovery or other pre-trial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36.” (*Swaithes v. Superior Court* (1989) 212 Cal.App.3d 1082, 1085.) “The trial court has no power to balance the differing interests of opposing litigants in applying the provision.” (*Ibid.*)

Analysis

Plaintiffs seek preference under Code of Civil Procedure § 36(a) and assert that the age and condition of plaintiff Dolly Ryan meet the requirements such that the motion for preference must be granted. (MPA ISO Motion for Preference, pp. 4-5.) Plaintiffs point out that Dolly Ryan is 95 years old, is frail, was diagnosed with Stage 4 breast cancer in 2013 and had a recurrence in 2015, due to her age she has declined continued imaging to monitor her cancer, she fractured her ankle in 2023 and uses a walker to move around, she has been diagnosed with osteopenia and dyslipidemia, hypertension, and impaired fasting glucose. (MPA ISO Motion for Preference, p. 2; Thomas A. Reyda Decl., ¶¶ 3-6.) The combination of her conditions put Dolly at a significant risk of a stroke, heart attack, or other cardiac event that would prevent her from meaningfully participating in this matter. (MPA ISO Motion for Preference, p. 3; Thomas A. Reyda Decl., ¶ 5.)

Defendants oppose the Motion. They assert that Plaintiff cannot establish entitlement to calendar preference under Code of Civil Procedure § 36(a) and that she has not met her burden of proof under California Rules of Court, rule 3.1335(b). (Opposition, pp. 5-7.) Defendants concede that Dolly Ryan has a substantial interest in the action as a whole, but they contest that Dolly Ryan has not shown that her health is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation. (*Id.* at pp. 5-6.) Defendants argue that Dolly Ryan “must demonstrate, with facts supported by **competent evidence**, that she suffers from a medical condition that makes it likely she will die or become **incapacitated** prior to her case coming to trial without preference.” Defendants assert that “forcing [them] to trial within 120 days under these circumstances will violate their due process rights and severely prejudice their ability to defend themselves.” (*Id.* at pp. 6, 10-13.) Defendants also

argue that Dolly Ryan has not met the burden provided for in California Rules of Court, rule 3.1335(b), and further has failed to show that her health condition is such that her death or incapacity is imminent. (*Id.* at pp. 6-10.)

On reply, Plaintiffs argue that the Thomas A. Reyda declaration is exactly what the Legislature authorized courts to rely on for motions for preference, that Dolly Ryan's condition satisfies the requirements of Code of Civil Procedure § 36(a), and that Defendants' claim of prejudice in the event of the Court granting this motion has no merit as there is no balancing requirement in the analysis of motions for preference. (Reply, pp. 6-8.)

Request for Judicial Notice:

Plaintiffs request the Court to take judicial notice of a CACI female life expectancy table under Evidence Code §§ 452(e), 451(f), and 452(h). The table shows that Dolly Ryan, at the age of 95, would seemingly have a life expectancy of 3.3 years. Plaintiffs' request for judicial notice is GRANTED. (*Behr v. Redmond* (2011) 193 Cal.App.4th 517, 534, fn. 7 ["The information in the CACI life expectancy table is judicially noticeable under Evidence Code section 452, subdivision (h)."].)

Objections to Thomas A. Reyda Declaration:

Defendants object to ¶¶ 3, 4, and 5 of the Thomas A. Reyda declaration.

The objections to ¶¶ 3-5 are identical and the objection relied on is duplicated below:

Speculation, lacks foundation, lacks personal knowledge and/or proper authentication (Evidence Code §§702, 1400, 1401); Asserted Facts are Unsupported by Evidence (Smith v. Covell (1980) 100 Cal.App.3d 947, 958; Upham Co. v. United States Fid. & Guar. (1922) 59 Cal.App. 606, 610); Improper Opinion (Evid. Code § 803; Hawk v. Superior Court (1974) 42 Cal.App.3d 108, 119); Improper Legal Conclusion (Evid. Code § 310; Downer v. Bramet (1984) 152 Cal.App.3d 837); Hearsay (Evidence Code §1200); Improper Medical Opinion (Evidence Code §803.) Declarant is not a medical provider and offers no competent evidence establishing that "[c]ombined these conditions and diagnoses put significant strain on her heart and vascular system. These conditions put Dolly at a significant risk of a stroke, heart attack, or other cardiac event that would prevent her from meaningfully participating in this matter."

(Evid. Objections to Reyda Decl., pp. 2-4.)

Plaintiffs respond that Defendants are conflating Code of Civ. Proc., § 36(a) with § 36(d) and point out that the attorney declaration Plaintiffs submitted is in line with Code of Civ. Proc., § 36.5. (Resp. to Evid. Objections to Reyda Decl., pp. 2-8.)

The Court overrules Defendants' objections to the Reyda Declaration as Code of Civ. Proc., § 36.5 allows the declaration that was filed in support of the instant preference motion. "An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 *may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party.* The affidavit is not admissible for any purpose other than a motion for preference under subdivision (a) of Section 36." (Code of Civ. Proc., § 36.5, italics added.) The relaxed evidentiary requirements for these declarations is why the declaration is not admissible

for any other purpose than to be used in support of a motion for preference.

A motion made under § 36(a) “may be supported by nothing more than an attorney’s declaration ‘based upon information and belief as to the medical diagnosis and prognosis of any party.’ [Citation.]” (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534, citing Code Civ. Proc, § 36.5 “[a]n affidavit in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party”].) The attorney declaration “can consist entirely of hearsay and conclusions.” (*Ibid.*)

Defendants’ objections are OVERRULED.

Objection to Defendants’ Opposition

Plaintiffs object to page 9, lines 8-24 of the Opposition, which purport to provide statistics about the prevalence of the ailments Plaintiffs assert Dolly Ryan suffers from. (Plaintiffs’ Objections to Opposition, p. 2.) Plaintiffs object on the basis of speculation, foundation, personal knowledge, authentication, improper opinion, improper legal conclusion, hearsay, and improper medical opinion. (*Id.* at pp. 2-3.) Plaintiffs’ objections are overruled as Defendants arguments in their Opposition are not evidence that may be objected to. “Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) “The allegations of a brief are not evidence and a brief is not a sworn document.” (*In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515.)

Plaintiffs’ objections are OVERRULED.

Age and Substantial Interest in the Action as a Whole Elements

These two considerations are not at issue here as Defendants have conceded as to their existence. (Opposition, p. 5:26-27.)

The Health of the Party Is Such That a Preference Is Necessary to Prevent Prejudicing the Party’s Interest in the Litigation Element

Plaintiffs argue that the health of Dolly Ryan is such that a preference is necessary to prevent prejudicing her interest in the instant litigation. They support this with the assertions that Dolly Ryan is 95 years old, is frail, was diagnosed with Stage 4 breast cancer in 2013 and had a recurrence in 2015, she fractured her ankle in 2023 and uses a walker to move around, she has been diagnosed with osteopenia and dyslipidemia, hypertension, and impaired fasting glucose. (MPA ISO Motion for Preference, p. 2; Thomas A. Reyda Decl., ¶¶ 3-6.) “These conditions put Dolly at a significant risk of a stroke, heart attack, or other cardiac event that would prevent her from meaningfully participating in this matter.” (MPA ISO Motion for Preference, p. 3; Thomas A. Reyda Decl., ¶ 5.)

Defendants argue that “Plaintiff has utterly failed to establish that she has a life-threatening condition such that she is likely to pass away or become incapacitated before trial.” (Opposition, p. 6.) They argue that her cancer appears to have been in remission for a full decade. (*Id.* at p. 8.) Defendants cite *Looney v. Superior Court* (1993) 16 Cal.App.4th 521, 533, fn. 12, for the proposition that Code of Civil Procedure, § 36(a) “provides ‘an early trial date for persons who, because of their advanced age or serious medical problems, might die or become incapacitated before their case comes to trial.’ ”

(Opposition, p. 5:18-20)

The Court finds that Dolly Ryan’s prior stage 4 cancer diagnosis and its past recurrence, the fact that she is frail, uses a walker, has a history of falling, has issues such as osteopenia and dyslipidemia, hypertension, and impaired fasting glucose, has a risk of a stroke, heart attack, or other cardiac event, and even her very advanced age of 95, when viewed together, support granting Plaintiffs’ Motion for Preference. As cited by Defendants, when “advanced age or serious medical problems” mean that a party “might die or become incapacitated before their case comes to trial,” it is appropriate to grant a motion for preference. (*Looney v. Superior Court* (1993) 16 Cal.App.4th 521, 533, fn. 12.) “There can be little argument that section 36 was enacted for the purpose of that an *aged or terminally ill* plaintiff would be able to participate in the trial of his or her case and be able to realize redress upon the claim asserted. Such a preference is not only necessary to assure a party’s peace of mind that he or she will live to see a particular dispute brought to resolution but it can also have substantive consequences. The party’s presence and ability to testify in person and/or assist counsel may be critical to success. In addition, the nature of the ultimate recovery can be adversely affected by a plaintiff’s death prior to judgment.” (*Id.* at p. 532, italics added.)

Ruling

For the reasons discussed above, the Court **GRANTS** Plaintiffs’ motion for preference. Counsel should appear (Zoom okay) to discuss scheduling and possible trial dates, as well as intervening ADR.

13. 9:00 AM CASE NUMBER: C25-03308
CASE NAME: RAMONA FICKES VS. GHC OF WALNUT CREEK, LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: GHC OF WALNUT CREEK, LLC
TENTATIVE RULING:

Before the Court is a petition to compel arbitration, filed by defendants GHC of Walnut Creek, LLC, dba Walnut Creek Skilled Nursing and Rehabilitation Center; Life Generations Healthcare, LLC; and Thomas Olds, Jr.

For the reasons set forth below, the Court **denies** the Petition.

Background

Ramona May-Fickes entered into the care of Walnut Creek Skilled Nursing and Rehabilitation Center on August 8, 2024. (Complaint, ¶ 22.) Ramona’s admission forms and arbitration agreement were completed and executed by her nephew, plaintiff Ronald Laurence. (Videon Decl. ISO Petition, ¶ 3.) These were given to him on August 12, 2024, and returned on August 31, 2024. (*Ibid.*)

Plaintiffs allege that around early October 2024, when outside hospice care ceased, the care for Ramona deteriorated. (Complaint, ¶¶ 23-25.) On November 13, 2024, staff at the skilled nursing center noticed a discoloration on Ramona’s right leg that they referred to as a rash. (*Id.* at ¶ 29.) On November 19, 2024, Ramona’s family withdrew her from the skilled nursing facility and took her to an emergency room, where she was diagnosed with ischemic pain in her right foot and critical limb ischemia of the lower right extremity. (*Id.* at ¶¶ 31-34.) She was admitted to the hospital that same day and on November 27, 2024, the hospital discharged her to her home with hospice care, and she passed away at home on January 24, 2025. (*Id.* at ¶¶ 35-39.)